

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT**

Crl.Misc. No. 3867-B of 2021

Jamshaid Ahmad Versus The State, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
-------------------------------	------------------------------	---

13.07.2021

Sheikh Jamshaid Hayat, Advocate with the petitioner.
Mr. Muhammad Ali Shahab, Deputy Prosecutor
General with Rashid/SI.

Through this petition, Jamshaid Ahmad petitioner, conjures pre-capture bail in case FIR No. 236/2021, dated 18.04.2021 for offences under sections 186, 354, 382, 384, 506(b), 148, 149 PPC registered at Police Station City, District Muzaffargarh.

2. According to wrongdoing report, on 17.04.2021 at about 05:00 p.m., when Waseem Nawaz, complainant alongwith staff of Municipal Corporation, Muzaffargarh, attempted to lift the trash/harsh structure material lying outside the place of Gul Sher by stacking it into true work vehicle trollies, the petitioner while outfitted with gun alongwith other co-charged, who were likewise equipped with dangerous weapons, came at the spot by shaping an unlawful get together in encouragement of their normal goal, perpetrated the demonstration of blackmail and attacked upon the authorities of the organization in release of their authority obligations. The petitioner was additionally accused of the charge for slapping PWs Azhar Tareen and Shahzeb as well as snatching of cellphone from Azhar Tareen.

3. The complainant has not turned up disregarding notice, appropriately, this Court has no other alternative but to choose the case in the wake of hearing learned counsel for the petitioner, learned Deputy Prosecutor General and going through the accessible record.

4. Heard. Record examined.

5. Throughout examination, PW Azhar Tareen has recorded his assertion before the Investigating Officer on 21.06.2021 that on 17.04.2021, on routine he was working, when a fight occurred between the officials of Municipal Corporation, Muzaffargarh and the petitioner just as his co-blamed. During the quarrel, his cellphone missed which was hence found in broken condition. He further affirmed that at the time of occurrence, nobody had grabbed his cellphone. In the light of his assertion, vide case diary No. 05 dated 21.06.2021, offence under section 382 PPC was erased. In a similar case journal, the Investigating Officer has believed that the petitioner is seen as blameworthy just to the degree of slapping and mishandling the complainant party.

6. It is seen that the Complainant held up the FIR with a postponement of two days for which he has not outfitted any clarification. Reliance is placed upon case law titled as "*Khair Muhammad and another Vs. The State through P.G.Punjab and another*" (2021 SCMR 130) wherein it has been held:-

“....According to the contents of the crime report, it is mentioned that the occurrence has taken place in the morning whereas the matter was reported to police at 10:50 a.m. Admittedly, the inter-se distance between the place of occurrence and police station is

08-KM. Inordinate delay qua time of occurrence and registration clearly reveals that possibility of deliberation and consultation cannot be ruled out...”

7. Furthermore, the Complainant explicitly claimed that the petitioner slapped PWs Azhar Tareen and Shahzeb however they didn't get themselves medically examined. The clinical proof was imperative for certification of the visual record.

8. This is not all, there is a big question as to whether the provisions of Section 506 (b) PPC are attracted to the facts and circumstances of this case. “Criminal Intimidation” is defined in Section 503 PPC which reads as under:

“503. Criminal intimidation. Whoever threatens another with an injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.”

Similarly, the punishment of criminal intimidation is provided under section 506 P.P.C. which have two parts and, for the convenience, are reproduced as under:

“506. Punishment for criminal intimidation. Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.
If threat be to cause death or grievous hurt, etc.: And if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with

imprisonment for a term which may extend to seven years, or to impute unchastity to a woman shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.”

9. An uncovered scrutiny of above segment shows that danger simpliciter doesn't establish criminal intimidation except if it is proposed to cause or causes an individual or any one in whom he is intrigued to do any demonstration which he lawfully will undoubtedly do, or to discard to do any demonstration which that individual is legitimately qualified for do, as the method for keeping away from execution of such danger. In the current case no such condition is referenced in the FIR. Hence, it is doubtful whether the offence under Section 506 (b) PPC is made out. I fortified my view from the case laws reported as “*Syed Ali Asghar Shah v. The State*” (1988 P.Cr.LJ 270 Lahore), “*Manzoor Ahmad and others v. The State*” (2010 MLD 291 Lahore), “and “*Muhammad Riaz alias Dinga and others v. The State and another*” (2011 P Cr. LJ 615).

10. Co-accused namely Muhammad Safdar Abbas, Muhammad Rizwan and Muhammad Ajmal have been granted bail after arrest vide order dated 20.04.2021 passed by the learned Magistrate, Muzaffargarh. The role attributed to the petitioner is almost identical to that of his afore-mentioned co-accused who have been granted bail after arrest. It is settled proposition of law that if the co-accused having the identical role, were granted bail after arrest, then pre-arrest bail of co-accused should not be refused because he has to be released on bail soon after his arrest, therefore, the petitioner is entitled for the

concession of bail on this ground. In this regard, I am guided from the case laws reported as “*Muhammad Razam v. Zafar Ullah and another*” (1986 SCMR 1380) and *Fida Hussain v. State and others*” (PLJ 2010 Cr.C. (Lahore) 236).

11. So far as offences under sections 186, 354 & 384 PPC are concerned, all these are bailable.

12. It is evident from the record that the petitioner remained three times members of the National Assembly of Pakistan and is the Chairman of Awami Raj Party. He oftenly made press conferences against the Government and furthermore challenged the public authority.

13. The above facts lead me to draw an inference that *prima facie*, the prosecution lacks sufficient incriminating material to connect the petitioner with the commission of alleged offences and chances of petitioner’s false implication in the instant case with deliberation after consultation cannot be ruled out. The concession of pre-arrest bail being an extra ordinary relief is to be granted to protect the innocent persons from the victimization and humiliation at the hands of police through abuse of law for ulterior motive. Even otherwise, if an accused person has a good case for post arrest bail mere at the wish of complainant, he cannot be sent behind the bars for few days by dismissing his application for pre-arrest bail. Reliance is placed upon the case titled as **Crl. Petition No.801-L of 2020 titled as Shahzada Qaiser Arfat alias Qaiser vs. The State etc.** wherein the Hon’ble Supreme Court of Pakistan held as under:-

“...Pre-arrest bail is in the nature of a check on the police power to arrest a person. The non-availability of

incriminating material against the accused or non-existence of a sufficient ground including a valid purpose for making arrest of the accused person in a case by the investigating officer would as a corollary be a ground for admitting the accused to pre-arrest bail, and vice versa. Reluctance of the courts in admitting the accused persons to pre-arrest bail by treating such a relief an extraordinary one without examining whether there is sufficient incriminating material available on record to connect the accused with the commission of the alleged offence and for what purpose his arrest and detention is required during investigation or trial of the case, and their insistence only on showing *malafide* on part of the complainant or the Police for granting pre-arrest bail does not appear to be correct, especially after recognition of the right to fair trial as a fundamental right under Article 10-A of Constitution of Pakistan, 1973. Protection against arbitrary arrest and detention is part of the right to liberty and fair trial. This Court has, in many cases, granted pre-arrest bail to accused persons after finding that there are no reasonable grounds for believing their involvement in the commission of the alleged offences and has not required independent proof of *malafide* on part of the Police or the complainant before granting such relief. Despite non-availability of the incriminating material against the accused, his implication by the complainant and the insistence of the Police to arrest him are the circumstances which by themselves indicate the *malafide* on part of the complainant and the Police, and the accused need not lead any other evidence to prove *malafide* on their part....”

14. The petitioner has joined the police investigation and reportedly there is no misuse of concession of pre-arrest bail, therefore, the petitioner has made out a case for grant of pre-arrest bail.

15. As a corollary of above-said discussion, this petition is **accepted** and ad-interim pre-arrest bail already granted to the petitioner is **confirmed** subject to his furnishing fresh bail bonds in the sum of Rs. 2,00,000/- (*Two hundred thousand only*) with one surety in the like amount to the satisfaction of learned trial Court.

16. Before parting with this order, it is made clear that the supra mentioned observations are tentative in nature and the same are strictly confined to the disposal of instant bail application.

(Muhammad Tariq Nadeem)
Judge

Khurram

Approved for reporting

Judge